

State vs Bijender Singh on 23 December, 2024

IN THE COURT OF Ms. VANDANA JAIN
ADDITIONAL SESSIONS JUDGE-03 & SPECIAL JUDGE
(COMPANIES ACT) SOUTH WEST: DWARKA COURTS:
NEW DELHI

(MORE THAN 5 YEARS OLD)

CNR No. DLSW01-014596-2019

SC No. : 947/2019

State Vs. : Bijender Singh

FIR No. : 358/2019

U/s. : 302/201/506 Part I IPC

P.S. : Najafgarh

1. Date of commission of offence : 06.12.2018
2. Date of institution of the case : 13.12.2019
3. Date of committal to Sessions Court : 23.12.2019
4. Name of the complainant : Sh. Gyan Singh
5. Name of accused, parentage & address : Bijender Singh
S/o Sh. Sukhbir Singh
R/o H. No. 47, Rajiv Nagar,
New Anaz Mandi, Najafgarh,
New Delhi.
8. Plea of the accused : Pleaded not guilty
9. Date on which order was reserved : 20.12.2024
10. Final order : Acquittal
11. Date of final order : 23.12.2024

SC No. 947/2019

State Vs. Bijender Singh

FIR No. 358/2019, PS Najafgarh

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JUDGMENT

1. The case of the prosecution is that on 17.12.2018, one Kulwinder Kaur reported about the missing of her husband Rajesh Tehlan since 06.12.2018. The missing report was lodged at PS Najafgarh vide DD No. 21A dated 17.12.2019 which was marked to ASI Rambir Singh. Efforts were made to find the missing person but no clue could be find. Therefore, on 07.08.2018, an FIR No. 358/2019 under Section 365 IPC PS Najafgarh was registered on the statement of one Gyan Singh, brother of Rajesh

Tehlan (deceased in the present case). He stated that his elder brother Rajesh Tehlan was a bus driver and he was informed by his sister-in-law (bhabhi) Kulwinder Kaur that his brother Rajesh was missing since second week of December 2018. He was also informed that his brother was alcoholic and had some arguments with his wife Kulwinder Kaur. He suspected that his brother was kidnapped by some unknown person. The investigation of the case was marked to SI Raghubir Singh. IO/SI Raghubir Singh recorded the statement of Kulwinder Kaur (wife).

2. In her statement, Kulwinder Kaur stated that one Ajit @ Sonu and Bijender Singh (accused herein) were the friends of her husband. Her husband was alcoholic and she used to share her problems with accused Bijender Singh. Gradually, he started helping her and they came close. She further stated that they developed physical relations. She was harassed by her husband due to which she asked the accused either to get her husband admitted in rehabilitation centre or to get her State Vs. Bijender Singh arrested in a case wherein he was declared PO. She further stated that accused used to get angry when her husband used to misbehave with her.

3. On 06.12.2018, at around 8:00 to 9:00 am, her husband came to the house and he was beaten up by some relative on the issue of some money. She called his friend Ajit @ Sonu at his instance, who took him to the doctor but her husband did not return back. She called Ajit @ Sonu (interchangeably used as Anil @ Sonu in the entire case) in order to check the whereabouts of her husband to which he stated that he had taken her husband (Rajesh Tehlan) to the Government Dispensary at Najafgarh and he was asked by the doctor to get him admitted to which he refused. He took Rs. 20/- to purchase cigarette from Ajit @ Sonu and after which he did not come back. A missing report in this regard was got registered by her. She also stated that when her husband did not return back, she confronted accused Bijender Singh on which he told her that since her husband used to harass her, he had killed him (Rajesh) by giving him sleeping pills and thereafter strangulating him. He (accused) had also stated that he had thrown the body of her husband (Rajesh) in a Canal in UP.

4. Further investigation was carried out wherein the statement of Ajit @ Sonu was recorded and thereafter the accused was arrested and a white colour Maruti car bearing registration No. HR 26 BX 2770 was recovered from his possession which was used in the commission of the offence in the present case. The disclosure statement of the accused was recorded as per which the deceased was the company of one Anil @ Kale, Girish Chand and accused Bijender Singh. As per State Vs. Bijender Singh the disclosure statement of accused Bijender Singh, on the date of incident, he had found Rajesh Tehlan in an inebriated state at Tuda Mandi, Najafgarh and then sedated him by alcohol mixed with sleeping pills and when he became unconscious, he strangulated him and threw his dead body in the canal at UP.

5. The statement of Anil @ Kale and Girish Chand were recorded wherein they stated that they met accused Bijender Singh under the Palam Flyover for drinking liquor in his car and they found one person sitting on a non-driver seat. He was unconscious and accused told them that the person was heavily drunk due to which he had slept. He kept his phone and that of Anil @ Kale at one juice shop at Palam but Girish refused to give his phone. While drinking liquor, they went to UP and accused Bijender Singh stopped his car and threw that person sitting on the non-driver seat in the canal, UP. He threatened both of them to not to disclose anything to anyone. The statements of both these

persons were got recorded by IO under Section 164 Cr.PC.

6. The accused led the police party to the spot i.e. on a bridge over Banjharpur Nahar, District Gautambudh Nagar, UP and pointed towards the canal and stated that on 06.12.2018, he had thrown dead body of Rajesh Tehlan in this canal from the bridge after sedating him alcohol mixed with sleeping pills but dead body could not be found. CDR were analyzed and it was found that mobile phone of Girish was moving continuously upto Noida till 10:00 pm on the date of incident.

7. After completion of the investigation, charge-sheet was filed State Vs. Bijender Singh against the accused in the present case. Cognizance of offence was taken under Section 365/302/201/506 IPC. After compliance of Section 207/208 Cr.PC, the file was committed to Sessions Courts. Thereafter, the matter was listed for framing of charge. The charge under Section 302/201/506 Part I IPC was framed against the accused on 10.02.2020 and matter was listed for PE.

8. Prosecution cited 15 witnesses, out of which 12 witnesses were examined. Statement of accused was recorded u/s 294 Cr.P.C., wherein he admitted documents i.e. FIR No. 358/2019, Certificate U/s 65 of Indian Evidence Act and statement under Section 164 Cr.PC dated 22.11.2019 of Anil as Ex.PX1 to Ex. PX3.

9. PE was thereafter closed vide order dated 31.05.2024. Statement of the accused was recorded under Section 313 Cr.PC wherein all incriminating evidence against him was put to him but accused denied all the allegations levelled against him and also submitted that he has been falsely implicated in the present case. He did not opt for DE and thereafter matter was listed for final arguments.

10. Before discussing the rival submissions made on behalf of both the sides, it would be appropriate to discuss, in brief, the testimonies of prosecution witnesses which have come on record. The testimonies of the prosecution witnesses are detailed as under:-

11. PW-1 Sh. Anil Jha @ Kale : He deposed that :

"I am the resident of above mentioned address. I am driver by profession. I do not know anything about the case. I do not know against whom the case is pending trial State Vs. Bijender Singh in this court. Police had met me during the pendency of investigation of this case. The police had taken me to Ld. MM at Dwarka court. Prior to taking me to the court of Ld.MM, the police had also beaten me. The police had also told me to narrate the incident before the Ld. MM as per their narration and story. I had narrated the same story to Ld.MM as told to me by the police."

He admitted his signatures at point A on his statement under Section 164 Cr.PC Ex.PW1/A.

12. Since PW-1 Anil Jha @ Kale did not disclose the facts truly, he was cross examined by Ld. Addl. PP for the State. He has denied all the suggestions given to him by Ld. Addl.PP. He has only admitted that he was having mobile number i.e. 9250624313 and also admitted that Girish Chand, who is his friend, was having mobile number i.e. 9250855450. He was cross examined by Ld. Counsel for

accused.

13. PW-2 Smt. Kulwinder Kaur : She deposed that:

"I am the resident of above mentioned address. I was married to Rajesh Tehlan in year 2004. I am having two children namely Parveen Tehlan (daughter), aged about 15 years and Aditya Tehlan (son), aged about 9 years. I am running a Beauty Parlour at Indra Park, Nangli Sakrawati, Najafgarh, New Delhi. My husband was a driver by profession. My husband used to go in morning and come home in the evening. My husband had taken loan on a vehicle, probably on R-TV, the installment of which he could not pay and the cheque got dishonoured. Thereafter, the case of dishonour of cheque got initiated against him by the other party and my husband got arrested in the said case. Thereafter, a compromise was effected between my husband and that party and some monthly installment was to be paid by my husband to other party. I cannot tell the exact due amount. The bail bond of my husband was given by my Devar brother-in-law. The name of my devar is Gyan Singh and the name of the brother-in-law of my devar is Sonu. My husband probably had given 3-4 State Vs. Bijender Singh installments to the said person and thereafter he stopped giving any further installment due to which the court again declared him Proclaimed Offender. My husband used to live at some other place other than our home for continuously 1-2 months and some time he used to come after 10 days. My husband was having a good nature. My husband was having friends and amongst them Ajit @Sonu and Bijender Singh also used to come at our home. Accused Bijender Singh is present in the court today (correctly identified by the witness). Probably on 10/11.12.2018, my husband did not come to home. I called here and there i.e. my family members, relatives, Bijender, Anil @ Sonu. Gyan Singh, Sonu (brother-in-law of Gyan Singh), but they told that they did not meet my husband. Thereafter, after waiting for few days, on 17.12.2018, I lodged the missing report of my husband at PS Najafgarh.

Thereafter, after some time, probably in the month of August, 2019 the police arrested accused Bijender and told us that Bijender had killed my husband. I did not met Bijender during the period of missing of my husband. I cannot tell anything else. I do not know anything about the case."

14. Since PW-2 Smt. Kulwinder Kaur did not disclose the facts truly, she was cross examined by Ld. Addl. PP for the State. She has admitted that her husband was an alcoholic. She has stated that the relationship between her and Bijender are cordial one as a normal family friend. She has admitted that she is also having another number i.e. 8860514836. She has also stated that she does not know number of Anil @ Sonu. She has denied all the suggestions given to her by Ld. Addl. PP. She was cross examined by Ld. Counsel for accused.

15. PW-3 Sh. Ajit @ Sonu : He has deposed that :

"I am a farmer by profession. I knew Rajesh Tehlan @Raju for many years. His sister married in my village. I also knew Bijender Singh who is friend of Rajesh Tehlan @ Raju for about 2-3 years prior to incident. Rajesh State Vs. Bijender Singh Tehlan @ Raju had got me met with Bijender Singh. Accused Bijender is present in Court today (correctly identified) as he is my friend. I became acquainted with him through Rajesh Tehlan @ Raju.

In the present case, I had only received one call from wife of Rajesh. She had called me to take him to the hospital and he had received minor injuries. Accordingly, I had reached at the house of Rajesh and taken him to the Najafgarh Health Centre on my scooty. After initial treatment, I left him at Tuda Mandi Chowk. He used to drink alcohol a lot and was also absconding in some cheque bouncing cases. At Tuda Mandi Chowk, in order to purchase liquor, he was continuously asking money from me. I gave him Rs.20/- and went away from there. Besides this, nothing had happened and nor I want to say anything else."

16. Since PW-3 Ajit @ Sonu did not disclose the facts truly, he was cross examined by learned Addl. PP for the State. During his cross examination by Ld. Addl. PP for the State, he denied all the suggestions given to him.

17. PW-4 Sh. Girish Chand : He has deposed that :

"I am driver by profession. I do not know anything in the present case. However, I was called by police officials in present case. They have made inquiries from me and I had told them that I do not know anything. Besides this I do not want to say anything else nor I know anything else."

18. Since PW-4 Sh. Girish Chand did not disclose the facts truly, she was cross examined by learned Addl. PP for the State. During her cross examination by Ld. Addl. PP for the State, she denied all the suggestions given to her.

19. PW-5 Sh. Ghyan Singh : He has deposed that "I am complainant in present case. I am a farmer by State Vs. Bijender Singh profession. Rajesh Tehlan is my brother and he was working as a conductor in RTV Bus and used to reside with his family at village Nangli Sakrawati, Najafgarh, New Delhi.

On 05.12.2018, my brother had sustained injuries. My brother was alcoholic. My sister-in-law (Bhabhi) namely Kulwinder Kaur made a call to Ajit @ Sonu S/o Sh. Mahabir Singh, R/o Village Mundhela for seeking his help in medical treatment of her husband. On 06.12.2018, Ajit came to my brother's house and took my brother to the hospital. Thereafter, Ajit took my brother to Bijender. Thereafter, my brother is missing since that day. We waited for my brother for about 6-12 months as my brother was facing trial in a case u/s 138 N.I. Act. On 06.12.2018, I along with my brother-in-law was called by crime branch and they informed me that my brother was with accused Bijender Singh and he was thrown in the drain by accused Bijender Singh.

On 07.12.2018, I went to PS Najafgarh, where, my statement was recorded by police and I gave name of Sonu, Bijender and my Bhabhi namely Mrs. Kulwinder to the police and told that they might be involved in the missing of my brother.

On 17.12.2018, my Bhabhi Kulwinder Kaur made a missing report. I was called by the police many times and they informed me that they are trying to search my brother Rajesh Tehlan. I had last seen my brother on 06.12.2018.

On 07.08.2019, police called me at PS Najafgarh, where my statement was recorded, same is Ex.PW5/A bears my signature at point A. My supplementary statement was also recorded by police on same day. I told to the police that on 06.12.2018, my brother-in-law Ved Prakash told me that Ajit @ Sonu had told him that on 06.12.2018 my brother Rajesh Tehlan was with him and he was in injured condition and my Bhabhi had also clicked the photographs of my brother Rajesh. My supplementary statement was also recorded by police. Accused Bijender and Ajit are known to me through my brother Rajesh Tehlan. Accused Bijender is present in the Court today (correctly identified). "

He was duly cross examined by Ld. Counsel for accused.

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20. PW-6 ASI Rambir : He has deposed that :

"On 17.12.2018, I was posted at PS Najafgarh as ASI. On that day, DO handed over me a DD No.21A. I obtained the photographs of the missing husband of complainant Smt.Kulwinder Kaur and searched for the missing person but he was not traceable. I even tried to contact the complainant to know the whereabouts of her husband and also as to whether he had reached at home. I handed over the photographs of missing person to the IO. IO recorded my statement u/s 161 Cr.P.C."

He was duly cross examined by Ld. Counsel for accused.

21. PW-7 ASI Randhawa : He has deposed that :

"On 06.08.2019, I was posted at Anti Snatching Team, Dwarka, PS Dwarka Sector-23. On that day, I along with SI Vivek Mandola, ASI Mahesh Tyagi and HC Subhash and we were doing patrolling duty in private car vide DD No.43B. I met a secret informer who revealed that accused will come in his car no. HR-26-BX-2770. I prepared a raiding team after sharing the information with my senior officials. We reached at Red Light, Kargil Chowk, Near Akshardham Apartment, Sector-19 Dwarka, New Delhi. We stopped the car and apprehended the accused who revealed his name as Bijender Singh. Accused was found in possession of one countrymade pistol and two live cartridges. Made in Japan was written on one side of countrymade pistol. On the other side, it was written auto pistol. I prepared the sketch of pistol and

seized the same vide seizure memo. I prepared a Rukka and sent HC Subhash to PS for registration of FIR. After sometime, SI Shiv Kumar reached at spot and further investigation of case was handed over to SI Shiv Kumar. SI Shiv Kumar arrested accused Bijender and recorded his disclosure statement.

Accused Bijender is present in the Court today (Correctly identified by witness).

Accused disclosed that he is living with Seema and her childrens and he knew Rajesh @ Raju since last 7-8 years. He slowly fell in love with Smt. Kulwinder who was wife State Vs. Bijender Singh of Rajesh. Rajesh was a habitual drinker and used to gave beatings to his wife and I do not like his behavior towards his wife. On 05.12.2018, Rajesh was beaten by brother-in- laws of his real brother and he sustained injuries. The said fact was told to him by Smt. Kulwinder on next day morning and further she told that Rajesh @ Raju was taken for medical treatment by Sonu to the hospital. Accused further disclosed that he called Sonu Mundhela and further asked his location to which he replied that he is at Najafgarh. Bijender went to Najafgarh and shifted Rajesh in his ritz car and drove the car to Palam and picked Girish and Kale in his car and they all started drinking alcohol and reached Kasna River, Noida and pushed Rajesh in the Kasna River from the road. The missing report of Rajesh already lodged at PS Najafgarh and SI Shiv Kumar gave the information to the PS with regard to arrest and disclosure of Bijender vide DD No. 29B."

He was cross examined by Ld. Counsel for accused.

22. PW-8 Retd. SI Shiv Kumar : He has deposed that "On 06.08.2019, I was posted at PS Dwarka Sector-23. On that day, DO informed me that an FIR No. 311/2019 under Section 25 Arms Act was registered and the investigation of same was marked to me by SHO. I along with HC Harimal Meena went to Kargil Chowk near Akshardham Appartment, Dwarka Sector-19, where I met ASI Randhawa, ASI Mahesh Tyagi, SI Vivek, they have already apprehended one person whose name I came to know as Bijender. I arrested him vide arrest memo Mark-X in FIR No. 311/2019, PS Dwarka Sector-23. I seized Ritz car no. HR-26-BX-2770 of accused vide memo Mark-Y. I recorded disclosure statement of accused Mark Z. Accused present in the Court today (Correctly identified). Accused disclosed that he is living with Seema and her childrens and he knew Rajesh @ Raju since last 7-8 years. He slowly fell in love with Smt. Kulwinder who was wife of Rajesh. Rajesh was a habitual drinker and used to gave beatings to his wife and I do not like his behavior towards his wife. On 05.12.2018, Rajesh was beaten by brother-in- laws of his real brother and he sustained injuries. The said fact was told to him by Smt. Kulwinder on next day morning and further she told that Rajesh @ Raju was taken State Vs. Bijender Singh for medical treatment by Sonu to the hospital. Accused further disclosed that he called Sonu Mundhela and further asked his location to which he replied that he is at Najafgarh. Bijender went to Najafgarh and shifted Rajesh in his ritz car and drove the car to Palam and picked Girish and Kale in his car and they all started drinking alcohol and reached Kasna River, Noida and pushed Rajesh in the Kasna River from the road.

I verified from PS Najafgarh that any person with the name of Rajesh is missing or not and came to know that he is missing since 17.12.2018. Thereafter, I gave the information to the PS Najafgarh with regard to arrest and disclosure of Bijender vide DD No. 29B."

He was cross examined by Ld. Counsel for accused.

23. PW-9 HC Suresh : He has deposed that :

"On 16.09.2019, I was posted at PS Najafgarh as constable. On that day, I joined the investigation of present case along with IO/SI Raghuvir Singh. Thereafter, I along with SI Raghuvir reached at Dwarka Court and after taking permission from Court, IO formally arrested accused Bijender vide arrest memo Ex.PW9/A bearing my signature at point A. Accused Bijender is present in the Court today (Correctly identified).

IO recorded disclosure statement of accused, same is now Ex.PW9/B bearing my signature at point A. Thereafter, IO took 2 days PC Remand of accused Bijender and we came back to PS."

He was cross examined by Ld. Counsel for accused.

24. PW-10 HC Jitender : He has deposed that :

"On 17.09.2019, I was posted at PS Najafgarh as constable. On that day, I joined the investigation of present case along with IO/SI Raghuvir Singh. Thereafter, we along with accused Bijender reached under the Palam flyover, where, at the instance of accused, we tried to trace out one Biri - Cigarette Khokha, however, same was not found there. Thereafter, we took the accused to Banjarpur Village, State Vs. Bijender Singh Gautam Budh Nagar, U.P., where accused pointed out the drain, where, he thrown the dead body of Rajesh Tehlan. Thereafter, IO prepared pointing out memo at the instance of accused, same is now Ex.PW10/A bearing my signature at point A. IO also prepared the pointing out memo of the spot at the instance of accused, same is Ex.PW10/B bearing my signature at point A. Thereafter, we tried to search dead body of Rajesh Tehlan, however, dead body was not recovered. IO also inquired from the police officials of PS Kakkor, PS Dhankor and PS Raghukra, however, no clue was found about the dead body of victim Rajesh Tehlan @ Raju. Prior proceedings to Delhi to Gautam Budh Nagar, U.P., IO recorded disclosure statement of accused, same is Ex.PW10/C bearing my signature at point A. Accused present in the Court today (Correctly identified by witness).

Thereafter, we returned to PS and IO recorded my statement."

He was duly cross examined by Ld. Counsel for accused.

25. PW-11 Insp. R. L. Meena : He has deposed that :

"On 25.11.2019, I was posted at PS Najafgarh as Inspector (Investigation). On that day, investigation of present case was marked to me. Thereafter on 09.12.2019, I got prepared scaled site plan with the help of draftsman HC Hardeep Singh. Thereafter, I prepared charge-sheet and sent to Court."

He was cross examined by Ld. Counsel for accused.

26. PW-12 Insp. Raghuveer : He has deposed that :

"On 07.08.2019, I was posted at PS Najafgarh as SI. On that day, complainant Gyan Singh came to the PS and gave a written complaint of missing of his brother Rajesh Tehlan @ Raju. I prepared rukka, same is Ex.PW12/A bearing my signature at point A. The same was handed over to DO for registration of FIR. Thereafter, the DO handed over to me copy of FIR and original rukka.

I came to know that the wife of Rajesh Tehlan has already lodged a missing report qua her husband on 17.12.2018.

State Vs. Bijender Singh The same was taken by me from ASI Rambir. The missing report and the photograph of the missing person were taken by me, same are Ex.PW12/B (colly).

On 07.08.2019, an information was received at the PS that accused Bijender has been apprehended in a case at PS Dwarka Sector 23 and he had disclosed his involvement in the present case. The said information was reduced into writing via DD no. 29B Ex.PW12/C. The same was marked to me by Insp. R. L. Meena. Thereafter, I went to PS Dwarka Sector 23 and collected the documents of FIR No. 311/2019. Same are Ex.PW12/D (colly). I recorded statement of the wife of the deceased, Ajit @ Sonu and the police officials of FIR No. 311/2019. After going through the disclosure statement of accused Bijender Singh, I came to know that one Anil @ Kale and Girish were present with the accused at the time when he was disposing off the body of deceased. I recorded the statement of Anil @ Kale and Girish.

I took Anil @ Kale to a river situated near Village Baanjarpur. I inquired from the nearby villages and the public persons available nearby the spot with regard to the recovery of body of any person. I also inquired from the local PS but I came to know that nothing was recovered from the said river.

On 13.09.2019, I moved an application for production warrants of accused Bijender. Accused Bijender was formally arrested on 16.09.2019 in the present case vide arrest memo already Ex.PW9/A bearing my signature at point B. PC remand of the accused was taken. Disclosure statement of the accused was recorded. Thereafter, accused

took us to the spot near Baanjarpur river, District Gautam Budh Nagar, UP where pointing out memo was prepared at the instance of accused. Same is already Ex.PW10/B bearing my signature at point B. The site-plan was prepared at the instance of the accused, same is already Ex.PW10/A bearing my signature at point B. Thereafter, I got recorded statement of witnesses namely Girish and Anil Jha @ Kale under Section 164 Cr.PC before the concerned Ld. Magistrate. During investigation, I showed the photographs of the deceased Ex.PW12/B (colly) and both the witnesses stated that he was the same person who was sitting at the non-driver seat of the car while they both were accompanying the accused in the car and the said person in the photograph was thrown in the State Vs. Bijender Singh Baanjarpur river by the accused Bijender Singh. Thereafter section 302/201 IPC was added in the present case.

The body of the deceased was not traceable as the river flow was very high during that time. Thereafter, the file was marked to Insp. R. L. Meena for further investigation. Accused Bijender Singh is present in the court and correctly identified by the witness."

He was duly cross examined by Ld. Counsel for accused.

27. I have heard Sh. Vijender Singh Kharb, Ld. Addl. PP for the State and Sh. Dinesh Mudgil, Ld. counsel for accused.

28. Ld. Counsel for accused has argued that there is nothing incriminating which has come on record in order to connect the accused with the crime. Therefore, accused be acquitted in the present case.

29. On the other hand, Ld. Addl. PP for the State submits that PW-3 and PW-5 have duly proved the prosecution case beyond reasonable doubt, hence, accused be convicted for the offence punishable under Section 302/201/506 Part I IPC.

30. I have heard the arguments and have perused the record carefully.

31. It is a cardinal principle of criminal jurisprudence that the prosecution has to prove its case beyond reasonable doubt. Prosecution is under legal obligation to prove each and every ingredients of the offence beyond reasonable doubt. Reliance in this regard is placed on Nasir Sikander Shaikh vs. State of Maharashtra State Vs. Bijender Singh (SC) 2005 Cr.L.J. 2621 and Jarnail Singh vs. State of Punjab (SC) 1996 (1) RCR 465 .

32. The present case is based on circumstantial evidence as there is no direct evidence to connect accused with crime. Before proceeding to the merits of the case, let us dwell on the law pertaining to the circumstantial evidence. In Sharad Birdhi Chand Sarda vs. State of Maharashtra 1984 AIR 1622 / 1985 SCR (1) 88 , it was held that :

"3:3. Before a case against an accused vesting on circumstantial evidence can be said to be fully established the following conditions must be fulfilled as laid down in Hanumat's v. State of M.P. [1953] SCR 1091. [163C]

1. The circumstances from which the conclusion of guilt is to be drawn should be fully established; [163D]
2. The facts so established should be consistent with the hypothesis of guilt and the accused, that is to say, they should not be explainable on any other hypothesis except that the accused is guilty; [163G]
3. The circumstances should be of a conclusive nature and tendency; [163G]
4. They should exclude every possible hypothesis except the one to be proved; and [163H]
5. There must be a chain of evidence so complete as not to leave any reasonable ground for the conclusion consistent with the innocence of the accused and must show that in all human probability the act must have been done by the accused. [164B] These five golden principles constitute the panchsheel of the proof of a case based on circumstantial evidence and in the absence of a corpus delicti. [164B].

It was further held in aforesaid case :

3:4. The cardinal principle of criminal jurisprudence is that a case can be said to be proved only when there is certain and explicit evidence and no pure moral conviction. [164F]"

33. In Musheer Khan @ Badshah Khan v. State of Madhya State Vs. Bijender Singh Pradesh dated 28.01.2010, Hon'ble Supreme Court of India while discussing the nature of circumstantial evidence and the burden of proof of prosecution stated as under:-

"39. In a case of circumstantial evidence, one must look for complete chain of circumstances and not on snapped and scattered links which do not make a complete sequence. This Court finds that this case is entirely based on circumstantial evidence. While appreciating circumstantial evidence, the Court must adopt a cautious approach as circumstantial evidence is "inferential evidence" and proof in such a case is derivable by inference from circumstances."

34. The case of the prosecution as already discussed is based on the circumstantial evidence and the circumstances on which the prosecution has heavily relied in order to prove the guilt of the accused are as under :-

(a) PW-3 Ajit @ Sonu was called by PW-2 Kulwinder Kaur to take deceased Rajesh Tehlan to Health Centre on 06.12.2018 and deceased Rajesh Tehlan left the house with PW-3 and never returned back since then.

(b) PW-1 and PW-4 had seen the accused throwing deceased Rajesh Tehlan from his Ritz car No. HR 26BX 2770 into a Canal in Uttar Pradesh.

(a) PW-3 Ajit @ Sonu was called by PW-2 Kulwinder Kaur to take deceased Rajesh Tehlan to Health Centre on 06.12.2018 and deceased Rajesh Tehlan left the house with PW-3 and never returned back since then.

35. The prosecution case starts from the missing complaint of 17.12.2018 of the wife of Rajesh Tehlan, who is deceased in the State Vs. Bijender Singh present case on which no clue was found. After an year, on the statement of brother of missing person, the present FIR was registered initially under Section 365 IPC and fresh investigation was conducted.

36. The statement of Kulwinder Kaur, wife of Rajesh Tehlan was recorded. She deposed as PW-2 in the present case. The perusal of her testimony shows that she had not supported the prosecution case in any manner. She deposed that her husband was having a good nature. She deposed that after the missing report was registered on 17.12.2018, her husband has come to her house and had remained with her whereas the case of prosecution is that he was killed by accused on 06.12.2018. PW-2 Kulwinder Kaur was cross-examined by Ld. Addl. PP for the State comprehensively, however, she denied all the suggestions in respect of her husband harassing her or in respect of her relations with the accused. She denied accused having made extra judicial confession to her about the murder of her husband by him (accused).

37. The reading of the cross-examination of PW-2 Kulwinder Kaur by Ld. Addl. PP further reflects that she had belied the prosecution story to the extent that she denied taking her husband by PW-3 Ajit @ Sonu to the hospital and not returning back from there. However, the reading of the testimony of PW-3 Ajit @ Sonu shows that he had deposed that he received a call from wife of one Rajesh Tehlan to take him to the hospital. Accordingly, he reached his house and took him to Najafgarh Health Centre on his scooty and after initial treatment, he left him at Tuda Mandi Chowk where he gave Rs. 20/- to him and he did not know as to what had happened then.

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38. As per the statement of PW-2 Kulwinder Kaur, no such incident of calling PW-3 Ajit @ Sonu or taking her husband by PW-3 had ever happened whereas PW-3 had deposed regarding happening of the incident and taking deceased Rajesh Tehlan to the Najafgarh Health Centre. The testimony of both these prosecution witnesses is mutually contradictory. There is no investigation in regard to PW-2 Smt. Kulwinder Kaur calling PW-3 Ajit @ Sonu on 06.12.2018 which could corroborate the testimony of PW-3. No investigation was carried out in respect of the fact that deceased Rajesh Tehlan had ever visited Najafgarh Health Centre with PW-3 Ajit @ Sonu. It does not stand proved beyond doubt that deceased Rajesh Tehlan was accompanied by PW-3 to Najafgarh Health Centre

and thereafter he was not seen alive.

(b) PW-1 and PW-4 had seen the accused throwing deceased Rajesh Tehlan from his Ritz car No. HR 26BX 2770 into a Canal in Uttar Pradesh.

39. The testimonies of PW-1 Anil Jha @ Kale and PW-4 Girish Chand have been perused thoroughly. Though they have identified their signatures on the statements given by them under Section 164 Cr.PC, however, both of them stated that the said statements were given under the pressure and at the instance of police officials. Hence, it does not stand proved at all that PW-1 and PW-4 had joined accused Bijender for drinking liquor on 06.12.2018 in his Ritz car bearing No. HR 26BX 2770 or that they found one person (deceased) in an unconscious condition along with accused on the non-driver seat of State Vs. Bijender Singh Ritz car. Prosecution has further failed to prove that accused had taken them to UP while driving and had thrown the person sitting on the non-driver seat in a Canal. It does not stand proved that accused had threatened PW-1 and PW-4 and had asked not to disclose anything to anyone.

40. The entire prosecution case was based upon the statement of PW-1 and PW-4. The statement of PW-1 and PW-4 recorded under Section 164 Cr.PC was a crucial link to connect accused Bijender Singh with the crime. Since both of them have completely failed to support the prosecution version, therefore, there is not even an iota of evidence on record in order to prove that accused was seen with Rajesh Tehlan on 06.12.2018 at any point of time by anyone. There is no evidence on record which could prove that accused Bijender Singh had ever met Rajesh Tehlan on 06.12.2018 or at any point of time thereafter.

41. It is worthwhile to note here that dead body of Rajesh Tehlan has not been found from the Canal in UP wherein it was allegedly thrown. PW-2 Kulwinder Kaur had stated in her cross-examination that her husband had come to her after 17.12.2018 and has stayed with her. From the testimonies of witnesses on record it, it is not even proved that Rajesh Talhan has been murdered or his dead body was thrown in the Canal in UP. There is no evidence at all on record which can in any manner whatsoever, connect the accused with the offence. The prosecution case is based on circumstantial evidence. No witness has supported the prosecution case. Neither the motive to commit the offence which is an important link to prove the case based on State Vs. Bijender Singh circumstantial evidence is proved nor any circumstance has been proved which could even remotely indicate that accused has committed this offence. Not even a single link of the chain on which prosecution had based its case stands established. Therefore, this court has come to an inescapable conclusion that prosecution has miserably failed to prove the charges against Bijender Singh at all.

Conclusion

42. Hence, accused Bijender Singh stands acquitted in present FIR No. 358/2019 PS Najafgarh of the charges framed under Section 302/201/506 Part I IPC.

VANDANA by VANDANA JAIN Announced in open court JAIN Date: 2024.12.24 23.12.2024 12:48:04 +0530 (Vandana Jain) ASJ-03 & Special Judge (Companies Act) Dwarka Courts

(SW)/New Delhi Note: This judgment contains twenty one (21) pages and having my signature on each page. Digitally signed VANDANA by VANDANA JAIN JAIN Date: 2024.12.24 12:48:20 +0530 (Vandana Jain) ASJ-03 & Special Judge (Companies Act) Dwarka Courts (SW)/New Delhi State Vs. Bijender Singh